

37 **Matters not written the jurisdiction of the Tribunal.**- nothing in this Chapter shall confer jurisdiction on any commodity;

- (a) Classification or re-classification of any commodity;
- (b) Fixation of wharfage and demurrage charges (including conditions attached to such charges);
- (c) Fixation of fares levied for the carriage of passengers and freight levied for the carriage of luggage, parcels, railway material and military traffic and
- (d) Fixation of lump sum rates.

### **Comment**

Section 37 lays down the bar on the jurisdiction of Tribunal in certain matters such as classification of a commodity, fixation of wharfage and demurrage charges, fares levied of the carriage of passengers and freight levied for the carriage of passengers and freight levied for the carriage<sup>3</sup> of luggage. Etc.

**38. Powers of the Tribunal.**- (1) The Tribunal shall have the powers of a civil court under the Civil Procedure, 1908<sup>(5 of 1908)</sup>, for the purposes of taking evidence on oath, enforcing the attendance of witness, compelling the discovery and production of documents, issuing commissions for the examination of witness and of review and shall be deemed to be a Civil Court for all the purpos<sup>4</sup>es of Sec. 195 and Chapter XXXV of the code of Criminal Procedure, 1973 (2 of 1974) and any reference in such section of Chapter to the presiding Officer of a court shall be deemed to include a reference to the Chairman of the Tribunal.

- (3) The Tribunal shall also have power to pass such interim and final orders as the circumstances may require, including orders for the payment of costs.

### **Comment**

Section 38 provides that the Tribunal shall be a Civil Court under the Code of Civil Procedure, 1908; for the purpose of taking evidence on oath, etc., and shall also be deemed to be a civil Court for all the purposes of Sec. 195 and Chapter XXXV of the code of Criminal Procedure. 1973.

**39. Reference to the Tribunal.**- Notwithstanding anything contained in Sec. 37 the Central Government may make a reference to the Tribunal in respect of any of the matter specified in that section and where any such reference is

made in respect of any such pf any such matter, the Tribunal shall make an inquiry into that matter and submit its report thereon to the Central Government.

Section 39 lays down that the Central Government may make a reference to the Tribunal in respect of matters specified in Sec. 37.

40. Assistance by the Central Government. - (1) The Central Government shall give to the Tribunal such assistance as it may require and shall also place at its disposal any information in the possession of the Central Government which that Government may think relevant to any matter before the Tribunal.

(2) Any parson duly authorized in this behalf by the Central Government shall be entitled to appear and be heard in any proceedings before the Tribunal.

### **Comment**

Section 40 enjoins on the Central Government a duty to give assistance to the Tribunal.

41. Burden of proof, etc.—In the case of any complaint under Cl. (a) of Sec. 36.-

- (a) whenever it is shown that a railway administration charges one trader or class of traders or the traders in any local area, lower rates for the same or similar goods or lower charges for the same or similar services than it charges to other traders in any other local area, the burden of providing that such lower rate or charge does not amount to an undue preference, shall lie of on the railway administration:
- (b) In deciding whether a lower rate or charge does not amount to an undue preference, the Tribunal may, in addition to any other considerations affecting the case, take into consideration whether such lower rate or charge is necessary in the interests of the public.

### **Comments**

Section 41(a) provides that where lower rates are charged, the burden of proving that such lower rate does not amount to undue preference shall lie on the railway administration.

(b) Provides that while considering the question of undue preference the Tribunal may take into consideration whether such lower rate charge is necessary in the interest of public.

The burden of proof to disapprove negligence lies on the bailee. HE has to prove that he exercised die care and was not negligent.